

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #05	CCRB Case #: 201702837	☐ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/11/2017 4:34 PM	Location of Incident: Broadway and Ralph Avenue	18 Mo. SOL 10/11/2018	Precinct: 81		
Date/Time CV Reported Tue, 04/11/2017 7:54 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Tue, 04/11/2017 7:54 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM John Sheik	06535	949658	081 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Robert Mcneill	21758	955174	081 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM John Sheik	Off. Language: Police Officer John Sheik made remarks to § 87(2)(b) based upon race.			A . Unsubstantiated	

Case Summary

On April 11, 2017, § 87(2)(b) filed this complaint in person at the 81st Precinct.

On April 11, 2017, at approximately 4:34 PM, § 87(2)(b) was driving her § 87(2)(b) § 87(2)(b) to an § 87(2)(b) south bound on Broadway in Brooklyn. § 87(2)(b) was riding in the back seat on the driver's side. At the intersection of Ralph Avenue and Broadway, she was pulled over by PO John Sheik and PO Robert McNeill of the 81st Precinct. PO Sheik approached and informed § 87(2)(b) that § 87(2)(b) was not in a seatbelt and asked her for her driver's license and registration. § 87(2)(b) protested that § 87(2)(b) was wearing a seat belt and provided her identification. PO Sheik and PO McNeill returned to their patrol car. A few minutes later, PO Sheik returned to § 87(2)(b)'s vehicle with her identification and issued her traffic summons § 87(2)(b) for "No seat belt, rear under 16." As PO Sheik attempted to explain the process of entering a plea, § 87(2)(b) grabbed the summons and told him she did not want to hear anything he had to say. PO Sheik turned and walked back to his patrol car. As he walked away, § 87(2)(b) allegedly heard PO Sheik mutter "Nigger" under his breath (**Allegation A**). She drove to the 81st Precinct directly and filed this complaint.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during her interview § 87(2)(b)
- No notice of claim has been filed with the NYC Comptroller's office as of May 24, 2017.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint.
- PO Sheik has been a member of service for six years. He has four prior CCRB complaints with six prior allegations against him. PO Sheik has no substantiated allegations.

Findings and Recommendations

Allegation A –Offensive Language: Police Officer John Sheik made remarks to § 87(2)(b) based upon race.

It is undisputed that § 87(2)(b) was stopped by PO Sheik and issued a summons for not having her § 87(2)(b) son § 87(2)(b) in a seatbelt. § 87(2)(g)

§ 87(2)(b) stated that when PO Sheik approached her vehicle, she was upset and asked why she was being pulled over (see Board Review 01). PO Sheik first told § 87(2)(b) that he saw a cell phone in her hand. PO McNeill approached on the passenger side of her vehicle. § 87(2)(b)

§ 87(2)(b) asked why she had been pulled over and PO Sheik responded that he saw her cell phone in her hand. § 87(2)(b) denied using her cell phone and PO Sheik then stated that her child was not in his seat belt and asked for § 87(2)(b)'s license and registration approximately three times. § 87(2)(b) continued arguing with PO Sheik but provided her license and registration. PO Sheik and PO McNeill returned to their patrol car. A few minutes later, PO Sheik returned to § 87(2)(b)'s vehicle with her license and registration and a summons. § 87(2)(b) did not recall whether or not PO McNeill also returned to her vehicle. PO Sheik began explaining the process of pleading guilty or not guilty but § 87(2)(b) grabbed the ticket out of PO Sheik's hand and told him she did not want to hear anything he had to say. PO Sheik stated either "Whatever" or "fine" and turned back to his patrol car. As he walked to his patrol car, he allegedly muttered "Nigger." PO Sheik did not appear to be speaking to § 87(2)(b) directly, but rather speaking to himself. § 87(2)(b) did not respond or interact with PO Sheik further and drove to the 81st Precinct stationhouse.

PO Sheik stated that he pulled over § 87(2)(b) after observing her son § 87(2)(b) sitting in the back seat without a seat belt (see Board Review 02). PO Sheik did not make any observations regarding § 87(2)(b)'s cell phone. PO Sheik and PO McNeill approached § 87(2)(b)'s vehicle and PO Sheik requested § 87(2)(b)'s identification. § 87(2)(b) asked what she had been pulled over for, and was screaming from the onset of the interaction. After approximately five requests for identification, § 87(2)(b) handed PO Sheik her license and registration. PO Sheik and PO McNeill returned to their patrol car. After preparing a summons for having a child in a seat without a seat belt, PO Sheik and PO McNeill returned to § 87(2)(b)'s vehicle and PO Sheik handed her back her license and registration. As he explained the pleading process for the summons, § 87(2)(b) grabbed it out of his hands. PO Sheik walked back to his patrol car and denied making any statements, either to § 87(2)(b) or himself. PO Sheik denied using the term "Nigger" at any point during the incident, either to § 87(2)(b) or to himself. PO Sheik denied making any racial remark during the incident. PO Sheik's memo book notes only that § 87(2)(b) was "Aggressive, irate, yelling and screaming at son" during the incident (see Board Review 05).

§ 87(2)(g) PO McNeill did not interact with § 87(2)(b). PO McNeill did not hear PO Sheik say anything after giving § 87(2)(b) the summons. PO McNeill did not hear PO Sheik make any racial remark during the incident or use the term "Nigger" during the incident.

§ 87(2)(g) . Therefore it is recommended that **Allegation A** be closed as **unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date